

Aged, Blind and Disabled Manual	Section: Categories of Eligibility
Policy Manual Number: 115.030	Chapter: Widow/Widower Categories

WIDOW/WIDOWER CATEGORIES

Legal Authority: Social Security Act §1634(d); 42 CFR 435.137; 42 CFR 435.138; 1990 OBRA § 5103; Tenn. Comp. R. & Regs. 1200-13-20

1. Policy Statement

TennCare Medicaid benefits are available to certain widows/widowers who would be eligible for Supplemental Security Income (SSI) payments if initial entitlement to and/or increases in their Social Security widow/widower benefit were disregarded. Widows/widowers who are eligible for TennCare Medicaid on the basis of their widow/widower status must meet all other non-financial and financial eligibility conditions.

Widows/widowers may qualify for this category of TennCare Medicaid coverage under one of two categories:

- a.** Widow/Widower Spousal Retirement; or
- b.** Widow/Widower Actuarial Reduction.

The Social Security Widow/Widower benefit is based on the deceased spouse's Title II Old-Age, Survivors and Disability Insurance (OASDI) benefit.

2. Eligibility Categories

a. Widow/Widower Spousal Retirement

A disabled widow/widower is eligible for TennCare Medicaid for any month in which he is entitled to a Social Security Widow/Widower benefit, but is not eligible for SSI, if he:

- i.** Was eligible for SSI based on his own disability;
- ii.** Was entitled to the Social Security Widow/Widower benefit any time after the age of 50;
- iii.** Received an SSI benefit the month before the Social Security Widow/Widower benefit began;
- iv.** Would be eligible for SSI if the Widow/Widower entitlement and all subsequent COLAs were disregarded;
- v.** Is not entitled to Medicare Part A; and
- vi.** Is at least age 50 and up to age 65.

b. Widow/Widower Actuarial Reduction

NOTE: This category is closed to enrollment.

TennCare Medicaid benefits continued for certain disabled widows/widowers who lost SSI eligibility in 1984 due to an increase in the Social Security Widow/Widower benefit that occurred as a result of a change in the way the benefit was calculated. In order to receive TennCare Medicaid benefits in this category; the individual must:

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- i. Have been entitled to a monthly Title II disabled Social Security Widow/Widower benefit for December 1983;
- ii. Have been entitled to a received a Title II Social Security Widow/ Widower benefit for January 1984;
- iii. Have lost SSI eligibility in the first month that her increased Widow/Widower benefit was paid, due to the elimination of the reduction factor;
- iv. Have been entitled to the Social Security Widow/Widower benefit prior to age 60;
- v. Have continuously been entitled to the Widow/Widower benefit from the month the benefit was increased;
- vi. Have continued to be eligible for SSI when the Widow/Widower increase and all subsequent COLAs were disregarded; and
- vii. Have applied for Medicaid benefits on the basis of this change in the Widow/Widower benefit prior to July 1, 1988.

3. Non-Financial Eligibility Requirements

a. Age

Individuals must be at least age 50 and up to age 65 when they lost SSI due to receipt of the Social Security Widow/Widower benefit.

b. Citizenship

Individuals must be U.S. citizens, U.S. nationals or eligible non-citizens. Individuals are not required to provide documentary evidence of citizenship or national status if they are receiving Social Security benefits.

c. Residency

Individuals must be residents of Tennessee.

d. Enumeration

Individuals must possess and provide a valid Social Security Number (SSN) or proof of application for an SSN.

e. Received an SSI Payment

Individuals would continue to be eligible for SSI if the Social Security Widow/Widower benefit and subsequent COLAs were not counted as income.

f. Medicare Eligibility

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Eligible individuals cannot be entitled to Medicare Part A.

4. Financial Eligibility Requirements

a. Eligibility Determination Group

Applicants/enrollees in the Widow/Widower Spousal Retirement category are treated as an individual, or have an Eligibility Determination Group (EDG) size of one.

b. Income Limit

The income limits for this category are the same as the current SSI Federal Benefit Rates (SSI-FBRs).

c. Resource Limit

The individual's countable resources must be under \$2,000.

5. Budget Overview

a. Widow/Widower Entitlement Disregard

i. Initial Entitlement

The initial Widow/Widower entitlement amount is disregarded from the applicant's income.

ii. Social Security COLA or non-COLA Increase

Any Social Security COLA or non-COLA increases received by the individual after SSI was terminated are also disregarded.

b. Budget

Mrs. Jones became SSI-eligible based on disability. At age 62, she became entitled to Social Security Widow/Widower benefits of \$500. This additional income placed Mrs. Jones over the SSI-FBR and her SSI payments terminated. She is not entitled to Medicare Part A. She has \$200 of unearned pension income per month, and \$300 of earned income.

Mrs. Jones' net countable income is \$297.50. Since this amount is less than the SSI-FBR, \$735, she is eligible in the Widow/Widower Spousal Retirement category.

Income Budget Calculation		
Unearned Income		\$ 700.00
Irregular Unearned Income Disregard	+	\$ 0.00

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In-Kind Support and Maintenance	+	\$ 0.00
Ineligible Spouse's Deemed Unearned Income	+	N/A
Ineligible Parent's Deemed Income	+	N/A
General Deduction (\$20)	-	\$ 20.00
Child Support Disregard	-	N/A
Widow/Widower Entitlement Disregard	-	\$ 500.00
DAC Entitlement Disregard	-	N/A
COLA Disregard	-	\$ 0.00
Total Net Unearned Income	=	\$ 180.00
Self-Employment Income		\$ 0.00
Earned Income	+	\$ 300.00
Irregular Earned Income Disregard	-	\$ 0.00
Student Earned Income Exclusion	-	N/A
Ineligible Spouse's Deemed Earned Income	+	N/A
Remaining General Deduction	-	\$ 0.00
Earned Income Deduction	-	\$ 65.00
Impairment Related Work Expense	-	\$ 0.00
½ Deduction	-	\$ 117.50
Blind Work Expense	-	\$ 0.00
Total Net Earned Income	=	\$ 117.50
Total Countable Income (Total Net Unearned Income + Total Net Earned Income)	=	\$ 297.50
Qualified Income Trust	-	N/A
Net Countable Income		\$ 297.50
Income Test Limit		\$ 735.00
Income Test Result		PASS
Patient Liability		N/A

The above budget is current as of January 2017.

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